they were inconsistent with fundamental rights. Did uncodified personal law count as 'law in force' under Article 13? This question assumed particular significance extending beyond the Narasu case. If the court held that personal law was not 'law in force', then all uncodified personal law would effectively be immune from legal challenge on the grounds that it violated fundamental rights.

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Writing separate decisions, Chief Justice Chagla and Justice Gajendragadkar both held that personal law was not 'law in force' and that the Bombay law was constitutionally valid. They offered a variety of reasons for this decision, some of which were convincing and others less so. Article 13 defined law to include 'custom or usages', leaving the court to decide whether personal law was synonymous with a custom, and therefore should be treated as 'law in force'. The court invoked a constitutional document of colonial India – the Government of India Act of 1915 – in support of its argument that personal law was to be distinguished from custom.

The court cited Section 112 of the Government of India Act of 1915, which laid down the principles for deciding which 'personal law' or 'custom having the force of law' would apply to high court proceedings against the inhabitants of Calcutta, Madras and Bombay. In the court's analysis, the fact that Section 112 used both the phrases 'personal law' and 'custom having the force of law' indicated that they did not have the same meaning. This was a strange argument that equated provisions designed for entirely different purposes. Section 112 determined the law that should be administered by the high courts of Madras, Calcutta and Bombay; Article 13 clarified the effect of an inconsistency between existing laws and the fundamental rights under the Constitution. Unsurprisingly, the debates of the Constituent Assembly do not indicate that Article 13 was modelled on Section 112.

The Bombay High Court also cited Article 17 of the Constitution to reinforce its argument. Article 17 abolished untouchability and its practice in any form. The court held that if personal law was intended to be subject